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Classroom Interaction and Attendance

The professor begins by addressing a student's dishonesty about her attendance. He points out that he is **not as stupid as the students think**, as he remembers faces and names even when students lie. When one student claims her attendance is fine, the professor reveals it is actually **15 percent**, meaning she has attended only **15 out of 35 classes**. He explains that lying and saying "I do come" will not help the situation improve. Instead, he asks her to **accept the truth** so the problem can be addressed. The professor clarifies that he asks about attendance only for the student's **betterment**. He even helps students who are at risk of being **debarred** due to one attendance, because a full **year back** is a serious consequence. He states plainly that he is **not as cruel as students think**, and if someone genuinely cannot wake up in the morning, he jokingly offers to arrange for a **bucket of water** to be poured over them. The underlying message is that the **rules exist** and cannot be bypassed, but there is also room for empathy if students are honest about their difficulties.

The Importance of Attending and Listening in Class

The professor emphasizes the unique nature of NLU's academic system. He explains that he does not teach by simply reading from a **book**, and by now the students must have realized this. The **NLU system** is such that **whatever the professor teaches is what he expects** in the examination. To illustrate this, he gives a powerful example. He has taught that the **Constitution of India is not quasi-federal**. However, if a student reads any book or article, they will find the term **quasi-federal** written there. The moment a student writes **quasi-federal** in an exam, they will receive a **zero** and fail. He warns that he will not even entertain a discussion if a student brings a book to argue otherwise, because the correct position was already taught in class. He substantiates this by stating that **Dr. Ambedkar first said the Constitution is federal**, the **Supreme Court repeatedly said it is federal**, and later the Supreme Court declared that **federation is the basic structure of this Constitution**. Therefore, anyone writing **quasi-federal** is merely acting as a **follower of a Western country**, and the professor firmly declares, "I am not Western. I am Indian."

A Humorous Interlude: The Local Student and the IPS Lecture Anecdote

The professor engages with a student from **Nagpur**, a local girl. In a humorous tone, he threatens that **8 to 10 of them will come to her house for tea** and also to **lodge a complaint** against her for her poor attendance. He clarifies that in his local rustic language, "abusing" actually means **criticism**. He then shares a memorable anecdote from when he was teaching **IPS officers**. He was criticizing corruption, stating that if the **SSP is not corrupt**, a **traffic inspector** does not have the courage to take money at a crossroad. The topic of his lecture was the **Prevention of Corruption Act**, but a huge complaint was made against him, accusing him of taunting and abusing the officers who had invited him by paying his airfare. This story illustrates his blunt and unfiltered teaching style. Returning to the student, he jokes that if they eat her salt, they cannot abuse her, but he still promises to visit, noting that **Symbiosis** often hosts his lectures, so a visit is not impossible.

Recalling the Previous Lesson

The professor then questions another student, who is made to stand as a **punishment**, about what was taught the previous day. She correctly answers that it was **Equality before Law**. The professor notes that this topic was actually taught on the first or second day, along with the work of **Dicey** and the distinction between **Equality before Law** and **Equal Protection of Law**, the latter of which was covered just the previous week. The student elaborates that the concept is taken from **British rule** and comes from a book by **A.V. Dicey** titled **Introduction to the Study of the Law of the Constitution**. When asked the year it was written, the student hesitates out of fear, but the professor praises her for having read it, calling her a **good girl** and encouraging the class to clap for her. He then lightens the mood by joking with a student from **Pune**, saying he has heard that Pune girls are not scared and that they take people around to show **forts**. He humorously advises the students, especially a boy who seems scared, to be very careful and not to go if someone takes them around to show places.

The Rule of Law: Its True Origins in Ancient India

The professor transitions into the main topic, explaining that since **Equality before Law** is taken from the **Rule of Law**, he wanted to teach the class about its deeper origins. He makes a critical argument that the **Rule of Law** is a concept that is very difficult to explain but very easy to understand. While books and articles typically trace it only to **Western countries**, the professor asserts emphatically that the **Rule of Law has always been there in our country**. He asks the students to read any story from **ancient India** and they will find it is the **Rule of Law**. He gives several powerful examples. **Natural justice**, he says, can be considered a part of the Rule of Law. In the **Ramayana**, **Lord Rama** sent messages to **Ravana** not once but twice, warning him to return **Mother Sita** and avoid a destructive war. Even during the war, he gave repeated warnings, telling Ravana that he was a great and knowledgeable saint and only needed to return Sita to be excused. In the **Mahabharata**, when **Yudhishthira** lost the game of **gambling** and the condition was **12 years of exile and 1 year in an unknown place**, **Lord Krishna**, who knew a war would take place, did not stop it but insisted that the rule be followed. The third and most poignant example is that of **Shravan Kumar**, the devoted son who was carrying his blind parents. When **Lord Dasharatha** accidentally killed him, the **Rule of Law demanded** that the king take responsibility for the care and protection of the dead boy's parents. King Dasharatha went to them, served them water, and they ultimately cursed him to die of the same grief of losing a son. The professor emphasizes that Dasharatha was a king; he could have avoided this, but the Rule of Law bound him. This, he says, is the true spirit of the ancient Indian Rule of Law.

The Colonial Erasure of Indian Legal Heritage

The professor explains why these hundreds and thousands of ancient Indian examples are ignored and discarded today. The reason was the British need to **show dominance**. He argues that if the British had acknowledged that Indians had good things of their own, then the Indian people would not have

accepted their **superiority**. To maintain control, the British had to push a narrative that Indians were **inferior**, calling them things like **snake charmers**. The professor expresses his strong dislike for the term, because the word **charm** actually means something good, like a charming friend. The real satisfaction, he says, comes from the Hindi word **sapera**. He questions, with biting sarcasm, whether the British came all the way to India just to see snakes, and if they liked India so much that they didn't want to go back even after independence. He then points out a historical fact: the British eventually **folded their hands in front of people like Dr. Ambedkar** and pleaded. Their plea was that now with democracy, the public would elect representatives to Parliament, but the British had fallen in love with India and were not going back. Since they would not win elections, they asked for representation without elections. This led to **Article 331**, under which Dr. Ambedkar granted the **Anglo-Indian** community two MPs in Parliament for a period of 10 years. The professor then criticizes the **Congress Party** for repeatedly extending this provision until it was finally removed by the **104th Constitutional Amendment**. He concludes that if India was not good, no one would have wanted to settle here. From the **Mughals** to the **British**, everyone who came stayed. Even a modern figure like **Mark Tully**, a BBC reporter, came to report and liked India so much that he stayed. The professor recommends him as an excellent writer.

A Directive for the Examination

The professor makes a direct and practical appeal to the students regarding their examinations. He requests that if they are ever asked about the **Rule of Law**, they should write a little bit about **India**. He states candidly that no matter how hard the "cockroach" tries, he thinks **Modi** will remain in power for another three years, and only **Modi sympathizers will evaluate their answer sheets**. However, he clarifies that regardless of who is in power, he will be the one evaluating their papers. He then issues a stark warning: if a student writes that the **Rule of Law has come from Western countries**, **three marks will be deducted automatically**. He instructs them to search for and find references to the Rule of Law in **ancient Indian literature**, noting that even new Indian literature is still older than Western sources. This is a clear directive to decolonize their legal thinking and ground their answers in Indian history and context.

Dicey's Three Principles of the Rule of Law

The professor moves on to the formal legal doctrine. He states that **Dicey** stated three things for the **Rule of Law**: first was the **Supremacy of Law**, second was **Equality before Law**, and third was the **Predominance of Legal Spirit**. He begins by discussing the **Supremacy of Law**, which he explains is against the concept of **Rule by Law**. **Rule by Law** occurs when a **dictator**, a **sovereign**, or a **king** orders something, and whether it is right or wrong, that order becomes the law. He gives the example of the **missile man from North Korea**. When his father died, the new ruler ordered all subjects to weep and have tears in their eyes. The professor notes that when dictators die, people actually celebrate, but the order was that anyone without tears would be killed. This, he says, is **Rule by Law**. It is not an illegal act, because the sovereign ordered it, but it has no **fairness**, no **justice**, and is not **reasonable**. He then gives another example, stating that in some interpretations, **Indian girls from Muslim households** are given fewer rights, told not to get educated, married off early, and made to wear a **burqa**. He contrasts this with **Iranian girls**, who protested against wearing the burqa by coming onto the streets and being shot at. Some even walked completely naked, agitating that if they were forced to wear it, they would wear nothing at all. He mentions the **Taliban**, where girls cannot study. All of these, he argues, are examples of **Rule by Law**, where the ruler's command is absolute.

Rule of Law in a University Context

To make the abstract concept relatable, the professor applies the **Rule of Law** to their own university setting. He admits that for a long time, **Rule by Law** was going on in their university under a certain unnamed person. He contrasts this with the **Rule of Law**. In a system governed by the Rule of Law, the **law remains** and governs everything uniformly. He gives the example of a **100-mark exam**. No matter how much a professor might personally dislike a student, if the attendance system gives them 5 marks, that cannot be changed to 4. It is **calculated automatically**. Mid-term marks, project marks, and end-term marks are all fixed. He tells the story of a **girl from Indore** who is "crazy for gold medals." She has already secured **12 gold medals** and is trying for 3 more. He confesses that she was not his most liked student; there were other students who were dearer to him and whom he wanted to get good marks. However, she put her life into studying, worked hard, and wrote the exam correctly, so he could not deduct her marks. This is the **Rule of Law**: his **whims and fancies** cannot override her merit. He reassures the students that if they have attendance, no one can debar them. If they have given an exam, getting their result is their **right**. If they passed, being promoted is their **right**. He then expands the concept, saying the **Rule of Law** is everywhere in modern times. If you don't get water, it is a violation. If you don't get food on time, it is a violation. The scope of the Rule of Law has become very wide.

Explaining the Three Principles Further

The professor elaborates further on Dicey's principles. **Equality before Law**, he explains, means there will be no **special privilege** or **special discrimination**. There will be no **untouchability** or restrictions based on caste, such as being forbidden to wear clothes on the upper body or being denied access to a pond. It means neither a privileged status will be created, nor a discriminatory and depressive one. This is the **negative** aspect of the principle. The third principle, the **Predominance of Legal Spirit**, is described as very important and very controversial. The professor states that **Dicey** wrote this very well and, importantly, **Indian culture aligns with it**. Dicey argued that the **State did not make all laws**. It might have made a few, but as human society evolved, some **laws kept forming along with us**. When the State came into existence, there were already existing laws. At the very least, the right to life, the right to food, the right to marry, or the right to procreation were certainly already there. These rights were not given by any **king** or any **State**. This is the **Predominance of Legal Spirit**. Generally, people respected each other and took care of each other, and such practices which became **customs** were, in essence, laws. This means that even before the **Constitution** was formed, there was an order and a decent system in society. The **State came later to make it even better**. The professor advises the students to read the modern expansion of this concept by the **International Commission of Jurists** to ease their further studies.

ADM Jabalpur Case: The Darkest Hour of the Rule of Law

The professor transitions to the Indian constitutional history of the Rule of Law, beginning with the first important leading case, **ADM Jabalpur vs. Shivkant Shukla**. He sets the context: during the **Emergency**, **MISA** (Maintenance of Internal Security Act) was applied, and everyone was arrested under it. Fundamental Rights were **suspended**. A writ petition was filed by ADM Jabalpur stating they were wrongly detained and should be released. The case came to the Supreme Court, which at the time had very good judges. At least three were beyond doubt: **Justice Khanna**, a very upright judge; **Justice Bhagwati**, who called himself the pioneer of human rights; and **Justice Chandrachud** (Y.V. Chandrachud), a very good judge. Along with **Justice Beg** (whom the professor harshly calls Indira Gandhi's peon) and **Chief Justice A.N. Ray** (who was made Chief Justice by Indira Gandhi but later changed his allegiance), it seemed the decision would be 4-1 in favor of liberty. However, the shocking judgment came, and the professor states bluntly that **Indira Gandhi bought everyone**. The only man who was not sold was **Justice H.R. Khanna**. The judges held that the **entire repository of the right to liberty is the Constitution**. If the Constitution has not given the right, then you do not have the right at all. Since the Constitution and rights were suspended, there was **no Right to Life** left to protect.

Nani Palkhivala's Argument and the Court's Chilling Response

The professor narrates the argument made by the legendary lawyer **Nani Palkhivala**, who was the respondent in the case. Palkhivala posed a terrifying hypothetical scenario to the court. Suppose a girl committed a crime, and the police went to arrest a specific person, say "Ishita." But the police mistakenly catch another innocent girl, "Aarya." Aarya protests that she is not Ishita, but the police say, "To hell with it, you are in our hands now." Palkhivala then asked an even darker question: during an **Emergency**, if a policeman, due to personal enmity or after drinking, comes and simply **shoots** an innocent person without any crime, would there be any remedy? The court's response, delivered by **Justice Chandrachud**, was devastating: "I am sorry, but the present law does not allow any relief." This meant a station house officer could come, shoot you, and you would have absolutely no legal recourse. The professor tells the students to read the case themselves, as they will feel like abusing the judges even more. He recounts visiting **Justice Bhagwati's** home and bluntly asking him what had happened and if he had consumed something. The core of the judgment was that all rights come only from the Constitution, and if the Constitution is suspended, you have no rights at all.

The Overruling and the Emotional Correction

The professor explains the aftermath. Because it was a manifestly wrong decision, immediately after the **Morarji Desai government** came to power, the **44th Constitutional Amendment** was passed. It was declared that the **Right to Life can never be suspended**, even during an Emergency. Two articles of the Constitution cannot be suspended: **Article 20 and Article 21**. He makes the students chant "20 and 21" five times to memorize it and points out that this is explicitly written in **Article 359**, which now states "except 20 and 21." Thus, **ADM Jabalpur was overruled by the 44th Amendment**. However, there is a deeper, more human story. **Justice D.Y. Chandrachud (DYC)** , the son of Justice Y.V. Chandrachud, felt a deep sense of **guilt over his father's betrayal**. In the landmark **Privacy case**, he wrote a powerful passage to morally correct his father's wrong. The professor asks a student to read the passage aloud: "Neither life nor liberty are bounties conferred by the State, nor does the Constitution create these rights." The professor explains that our life and liberty are not a **bounty** (a gift) of the State or the Constitution. They are given by **Nature** or **God**, and the Constitution has merely **accepted** this fact. The Constitution is not the **sole repository** of these rights; they existed even before its advent. This was the exact opposite of what his father had written.

The Parable of the Naughty Father and the Good Son

To illustrate this act of correction, the professor tells a folk parable. There was a very **naughty father** who abused everyone in the village his whole life. On his deathbed, he told his very **decent son** that everyone would abuse him after he died and asked the son to do something to make people praise him. The son was worried. He then realized that if he did even dirtier work than his father, people would say the father was better. So while the father used to abuse, the son started **throwing mud and dung** at people. After a few days, the villagers started saying, "His father was better!" The professor explains that D.Y. Chandrachud did something similar. To make his father look better, he wrote this profound passage, even though it was not legally necessary because the **44th Amendment** had already fixed the problem. He explicitly wrote that **ADM Jabalpur is overruled**, effectively washing away his father's sin.

The Visit of Justice Sanjiv Khanna

The professor recounts the visit of **Justice Sanjiv Khanna** (the nephew of Justice H.R. Khanna) to the university for convocation. The students, having been taught **ADM Jabalpur** thoroughly, were eager to get photos with him because of the heroic legacy of Justice H.R. Khanna. The professor told Justice Khanna that he had a huge fan following among the students. Justice Khanna was surprised, thinking that as Chief Justice for only 5-6 months, not many students would know him. The professor explained that because of **ADM Jabalpur**, the injustice done to his uncle (Justice H.R. Khanna was not made Chief Justice for his courageous dissent), Justice Sanjiv Khanna had converted that injustice into justice by rising to the position of Chief Justice. This pleased Justice Khanna immensely, and he took photos with many students for a long time. The professor uses this as a lesson that **reading cases has real-life benefits**. He shares another story of a PhD scholar who, while on her honeymoon in Kashmir, recognized **Justice Sanjay Kishan Kaul** at her hotel. She called the professor for advice on what to say. He advised her to quickly read 2-3 of his judgments and then tell him how much she appreciated his explanation of **proportionality** in the **Privacy judgment**. She did so, and it led to a meaningful conversation. Similarly, when **Justice S.K. Krishna**, a popular judge and Chairman of the Pay Commission, visited, the professor was able to have an engaging discussion with him by recollecting his judgments and commission reports. The moral of these stories is that when students read cases and judgments, they have something substantial to talk about with eminent people. Otherwise, he says, they will just come, eat food, leave, and not have a good life.

How to Answer a Question on the Rule of Law

The professor shifts to practical exam advice and displays a PPT that structures how to properly introduce the **Rule of Law** in an answer. He asks a student named **Athisha** to read it aloud. The ideal answer structure begins with the **meaning**: "Rule of Law means that no man is above law and every person is subject to the jurisdiction of ordinary courts of law, irrespective of position and rank." It then traces the phrase's origin to the French phrase **"La Principe de Legalite,"** which implies the **principle of legality**. The answer should then cite definitions from authoritative sources like **Black's Law Dictionary** and the **Oxford Advanced Learner's Dictionary**. After defining what it is, the answer should provide a historical perspective by quoting jurists. The student reads that **Sir Edward Coke**, Chief Justice in James I's reign, was the originator of the doctrine, but the professor notes that **Greek philosophers like Aristotle, Plato, and Cicero** first wrote about it. **Aristotle** notably said that "law should govern and those who are in power should be servants of law." The professor explains that this introduction pattern—general meaning, dictionary definition, jurist's view—should be followed for any topic, whether it's the Rule of Law or **Natural Justice**. He points out that he has provided all this information in a concise **seven-page document**, acknowledging that the students are "useless" and won't read much, so he has kept it short. The document also covers the **Modern Rule of Law** as defined by the **International Commission of Jurists** and the **United Nations**, which has many parameters with multiple sub-points. The professor emphasizes that the Parliament in England made laws that controlled and limited the power of the monarchy, making the executive subject to the law, which is how the Rule of Law began in its modern English form. The session concludes with a final compliment about the quality of teachers recruited at the university, despite the flaws of a former administrator.